

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 13, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Absent: Richard Johnson. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Segrave moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on January 23, 2023. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on February 6, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for a transfer of ownership of retail liquor license application filed with the City Clerk’s Office for Wyoming Horse Racing, LLC d/b/a Horse Palace, 6421 Speer Rd., Cheyenne, WY (license currently held by Poor Richard’s d/b/a Poor Richard’s). The purpose of the hearing having been met, Mayor Collins closed the hearing and referred the application to Finance Committee. Public comment was made by: Nick Hughes, President of Wyoming Horse Racing, LLC. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, and Mr. Laybourn.

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Ridge Road and Holland Court. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Cook moved to postpone to February 27, 2023, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” -- all members of the governing body present. Public comment was made by: Cooper Perryman, AVI, Mathew Kasper, Gateway Construction, Rebecca Murchie, and John Pike. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, and Mr. Cook.

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County A-1 Agriculture and Rural Residential to NR-3 Neighborhood Residential-High Density for land located southwest of the intersection of Ridge Road and Holland Court. Mr. Cook moved to approve on third and final reading, seconded

by Mr. White. Mr. Cook moved to postpone to February 27, 2023, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” -- all members of the governing body present. Public comment was made by: Josh Applegate.

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located east of Southwest Drive north of I-80. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” - all members of the governing body present. (#4489)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County LI Light Industrial to LI Light Industrial for land located east of Southwest Drive north of I-80. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” -all members of the governing body present. (#4490)

ORDINANCE –3rd READING – Vacating West 19th Street, west of Grant Avenue, City of Cheyenne, Laramie County, Wyoming (located south of Old Happy Jack Road, west of Missile Drive). Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” -all members of the governing body present. (#4491)

ORDINANCE –1st READING – Amending Section 1.3 of the Unified Development Code (UDC), amending the enforcement regulations of the UDC and making other conforming amendments – referred to Public Services Committee. (Sponsors – Dr. Aldrich, Mr. Cook, Mr. Johnson and Mr. White)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business and CB Community Business to CB Community Business for land located between Old Happy Jack Road and Lincolnway, west of Missile Drive – referred to Public Services Committee. (Sponsor – Mr. Cook)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Dell Range Addition, Sixth Filing, a replat of a portion of Tract 25, Dell Range Addition, City of Cheyenne, Laramie County, Wyoming (located southwest of the intersection of Ridge Road and Holland Court). Mr. Cook moved to adopt, seconded by Mr. Segrave. Mr. Cook moved to postpone to February 27, 2023, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body present.

[CA] RESOLUTION – Reappropriating the Fiscal Year 2023 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6301)

RESOLUTION – Directing City staff to prepare a Memorandum of Understanding between the City of Cheyenne and WJE, LLC regarding acceptance of Tracts 1, 2, and 3, Saddle Ridge 18th Filing subdivision as open space and defining private maintenance responsibility. Mr. Cook moved to adopt, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich and Mr. Segrave voting “no”. Public

comment was made by: John Edwards, WJE, LLC. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel and Mr. Segrave. (#6302)

[CA] RESOLUTION – Expressing the support of the Governing Body and directing City staff to work with the Wyoming Department of Transportation to name the new segment of road created by the “Lincolnway Service Interchange” Project to recognize the USS Cheyenne (SSN-773) Naval Submarine. Motion (per Consent Agenda) carried. (#6303)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2023 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing submission of the Americorps Foster Grandparent Program application to Americorps on behalf of the Governing Body of the City of Cheyenne to submit continuation application for the next three years of funding for the Youth Alternatives Foster Grandparent Program necessary support items – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Certifying the Cheyenne Transit Program 2023 Transit Development Plan – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Back 40 Subdivision, Third Filing, a replat of a portion of Lot 1, Block 1 Back 40 Subdivision First Filing, Lot 1, Block 2 and Lot 1, Block 3 Back 40 Subdivision Second Filing, and Lot 1 Block 1 Cheyenne Ice & Events Center 4th Filing being situated in a portion of Section 1, Township 13 North, Range 67 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located north of the intersection of Grant Avenue and W Lincolnway) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Centennial Heritage, 2nd Filing, a replat of Lots 8 thru 12, Block 2 Centennial Heritage and a portion of the NW1/4 of Section 2, Township 13 North Range 66 West, City of Cheyenne, Laramie County, Wyoming (located south of Raleigh Drive, near Savannah Drive and Taft Avenue) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Expressing the will of the Governing Body recognizing the need to provide City Boards, Commissions, and Councils with the tools they need to be effective, efficient, and transparent – referred to Public Services Committee. (Sponsors – Dr. Aldrich, Mr. Laybourn, Dr. Rinne and Mr. Segrave)

[CA] RESOLUTION – Authorizing PaydHealth, LLC, to provide advocacy and financial case management services for eligible specialty prescription drugs through alternative funding programs effective July 1, 2023 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] Preliminary Plat for Hill Heights Addition, 2nd Filing, a replat of the north 132 feet of the east 120 feet of the east 190 feet of the SE 1/4 of Tract 36, Hill Heights Addition, City of Cheyenne, Laramie County, Wyoming – referred to Public Services Committee.

Real Estate Purchase Agreement between Keizer Inc. and the City of Cheyenne for the purchase of real property generally located south of Atlantic Drive, between Cottonwood Drive and Centennial Drive and north of the Union Pacific Railroad, Laramie County, consisting of approximately 4.01 acres, more or less (2021 Specific Purpose Option Tax Fund). Reporting for Finance Committee, Mr. White moved to approve in an amount not to exceed \$168,000.00, seconded by Mr. Esquibel. Mr. White moved to amend by substitute dated February 11, 2023, seconded by Mr. Esquibel. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#7683)

[CA] Professional Services Agreement between the City of Cheyenne and Trihydro Corporation for the Landfill Methane Mitigation Work Plan Implementation (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$56,213.00). (#7684)

[CA] Grant Award Agreement between the City of Cheyenne and the Wyoming Office of Homeland Security for project scoping of the Cheyenne 18th Street Storm Sewer Interceptor Advance Assistance Project – referred to Finance Committee. (2019-2022 Optional 1% Sales Tax Funding and US Department of Homeland Security FEMA Funding)

[CA] Professional Services Agreement between the City of Cheyenne and BenchMark Engineers, PC for the Transfer Station Lift Station Upgrade or Replacement Project – referred to Finance Committee. (Solid Waste Fund)

[CA] Memorandum of Understanding between the City of Cheyenne and Arts Cheyenne for cooperative interaction, art-based initiatives and continued endorsement of Arts Cheyenne as the official local arts agency – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Goat Systems, LLC, for clarification and assurances of City development and reimbursement processes – referred to Finance Committee.

[CA] Professional Services Contract between the City of Cheyenne and Overstreet Homar & Kuker for legal services for the Contractor Licensing Board – referred to Finance Committee. (General Fund)

[CA] Professional Services Contract between the City of Cheyenne and Overstreet Homar & Kuker for legal services for the Board of Adjustment – referred to Finance Committee. (General Fund)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County for EOD, SWAT, and CNU Operations and Extraterritorial Law Enforcement assistance and activities – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7590-Owner and Design-Builder Agreement between the City of Cheyenne and FCI Constructors of Wyoming, LLC, for finishing the Cheyenne Public Safety Center (2012 & 2017 Specific Purpose Option Tax Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$2,148,310.00). (#7590)

[CA] Consideration of Bid #E-11-23 for fifty (50) trash receptacles for the City of Cheyenne, Community Recreation & Events Department (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (accepted bid from Conserv Flag Company, Sidney, NE, in an amount not to exceed \$58,000.00).

Consideration of Bid #S-3-23 for an agreement between the City of Cheyenne and Pole Mountain Electric, Inc. for the 17th Street Lighting Improvements Phase II Project (2017 Specific Purpose Option Tax Fund). Mr. White moved to approve in an amount not to exceed \$476,989.38, seconded by Mr. Cook. Mr. White moved to direct staff to fund the balance in an amount not to exceed \$282,341.38 from the 2021 Specific Purpose Option Sales Tax Fund for Downtown Projects, seconded by Mr. Esquibel. Motion as amended carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Laybourn, and Mr. White. (#7685)

[CA] Consideration of Bid #S-10-23 for an agreement between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River for 2023 City Overlay Part #1 (2019-2022 Optional 1% Sales Tax Fund and 2017 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$2,098,178.40). (#7686)

[CA] Consideration of Bid #E-12-23 for lift-equipped Transit vehicles for the City of Cheyenne, Transit Division – referred to Finance Committee. (Transit Program Funding)

[CA] Consideration of Bid #S-11-23 for an agreement between the City of Cheyenne and JTL Group Inc. d/b/a Knife River for the 2023 City Overlay Part #2 project – referred to Finance Committee. (2019-2022 Optional 1% Sales Tax Fund)

[CA] Consideration of Bid #S-9-23 for an agreement between the City of Cheyenne and Welding & Machine Inc. for the Sanitation Division Transfer Station Welding Repairs project – referred to Finance Committee. (Solid Waste Fund)

Appointments of Sheriff Brian Kozak and John Brodie to the Laramie County Community Juvenile Services Joint Powers Board. Mr. Segrave moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Collins who did not vote (Mayoral appointments).

No comments were made on the Voucher Report as presented.

Notice of Emergency Procurement. In accordance with the City of Cheyenne Purchasing Policy, an Emergency Procurement has been authorized by Mayor Collins for the Emergency Fleet Maintenance Facility Sanitary Sewer Repair. The emergency repair has been authorized to Sewer

& Drain Repair Specialists, LLC, for a total of \$84,995.00. Comment was made by the following member of the governing body: Mayor Collins.

Announcement was made of a Public Hearing to be held February 27, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, special malt beverage and winery permits) filed with the City Clerk's Office.

Announcement was made that due to the Presidents Day holiday on Monday, February 20, 2023, regularly scheduled City Council Committee meetings will instead be held as follows: Finance Committee will meet at Noon on Tuesday, February 21, 2023 and Public Services Committee will meet at Noon on Wednesday, February 22, 2023. Both meetings will be held at 2101 O'Neil Avenue, Room 104 and via electronic conference meeting.

Announcement was made of a Public Hearing to be held February 27, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for 9.87 acres of land situated in portions of Sunnyside Addition and Sunnyside Addition Second Filing, Section 12, T.13 N., R. 67 W., 6th P.M., Laramie County, Wyoming.

Under other business:

City Clerk Kris Jones advised the following item was being introduced and referred to Finance Committee - Donation agreement between the City of Cheyenne and Union Pacific Railroad Company to accept a donation of selected heritage fleet railroad cars – referred to Finance Committee.

Public comment was made by Zem Hopkins under other business.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Cook, and Mr. Esquibel.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:13 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
February 22, 2023